

U.O.Note No.2985/SC.E1/98-1, Genl.Admn. (SC.E) Dept., dt.04.01.1999: Reference of A.C.B., Vigilance Commission - not to be mentioned in orders.

Subject Heading : ACB - not to quote in references or charges

Subject Heading : Vigilance Commission - not to mention in references

Ref : 1. U.O.Note No.2518/SC.E/96-1, G.A. (SC.E) Dept., dt.04.07.1997.

2. U.O.Note No.962/SC.E/97-1, G.A.(SC.E) Dept., dt.04.08.1997.

In the reference 1st cited, detailed instructions were issued with regard to dealing with Anti-Corruption Bureau reports.

2. In the reference 2nd cited instructions were issued with regard to dealing with A.P.Vigilance Commission reports and while reiterating the earlier instructions issued in the matter, it was requested not to mention the correspondence made with the A.P.Vigilance Commission in the orders etc., issued by the Secretariat Departments.

3. In spite of the above clear instructions, it has come to the notice of the Government that some Departments of the Secretariat have mentioned the references of the Director General, Anti-Corruption Bureau and the Vigilance Commission in their orders and on account of this the Courts of Law / A.P.A.T. / C.A.T. on occasions have set aside the orders of the Departments on the plea of non application of their mind in such orders.

4. The Government have reconsidered the matter, and have decided to reiterate the instructions issued in the references 1st and 2nd cited, and also direct all the Departments of Secretariat not to mention the correspondence made with the Anti-Corruption Bureau and the A.P.Vigilance Commission in their orders etc., and any violation of these instructions would be viewed seriously and action taken accordingly.

5. All the Departments of Secretariat are requested to bring the above instructions to the notice of all subordinate offices under their control.